INCYTE CORP. et al v. HETERO USA, INC. et al

Plaintiff:	INCYTE CORP. and INCYTE HOLDINGS CORP.
Defendant:	HETERO USA, INC., HETERO LABS LIMITED UNIT-V and HETERO LABS LIMITED
Case Number:	1:2026cv13702
Filed:	October 21, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Christine P O'Hearn
Referring Judge:	Matthew J Skahill
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
October 21, 2026	**Filing 2** Corporate Disclosure Statement by INCYTE CORP., INCYTE HOLDINGS CORP.. (LIZZA, CHARLES)
October 21, 2026	**Filing 1** COMPLAINT against HETERO LABS LIMITED, HETERO LABS LIMITED UNIT-V, HETERO USA, INC. (Filing and Admin fee $ 405 receipt number ANJDC-18095047) , Related Case Selected, filed by INCYTE HOLDINGS CORP., INCYTE CORP.. (Attachments: #1 Exhibit A, #2 Exhibit B, #3 Exhibit C, #4 Exhibit D, #5 Civil Cover Sheet)(LIZZA, CHARLES)
October 21, 2026	Judge Christine P. O'Hearn and Magistrate Judge Matthew J. Skahill added. (dmw)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Incyte Corp. and Incyte Holdings Corporation (Delaware)
  - Defendant: Hetero USA, Inc. (Delaware); Hetero Labs Limited Unit-V (India); Hetero Labs Limited (India)
  - Plaintiff's Counsel: Saul Ewing LLP
- Case Identification: 1:26-cv-13702, D.N.J., 10/21/2026
- Venue Allegations: Venue is based on Defendant Hetero USA, Inc. maintaining a regular and established place of business in New Jersey. For the foreign defendants, venue is asserted on the basis that they may be sued in any judicial district.
- Core Dispute: Plaintiff alleges that Defendant's submission of an Abbreviated New Drug Application (ANDA) to market a generic version of the drug Jakafi® (ruxolitinib) constitutes an act of infringement of four patents covering specific salt forms of the active pharmaceutical ingredient.
- Technical Context: The technology relates to pharmaceutical salt chemistry, specifically creating stable, crystalline salt forms of the Janus kinase (JAK) inhibitor ruxolitinib, which is used to treat myeloproliferative disorders.
- Key Procedural History: This action was filed under the Hatch-Waxman Act, triggered by Defendant's submission of ANDA No. 221679 containing a Paragraph IV certification alleging that the patents-in-suit are invalid and/or will not be infringed. The patents are listed in the FDA's Orange Book for Plaintiff's Jakafi® drug product. The complaint notes this matter is related to numerous other lawsuits filed by Incyte against other generic manufacturers for the same drug product.

Case Timeline

Date	Event
2007-06-13	Earliest Priority Date for all Patents-in-Suit
2014-05-13	U.S. Patent No. 8,722,693 Issued
2014-09-02	U.S. Patent No. 8,822,481 Issued
2014-09-09	U.S. Patent No. 8,829,013 Issued

2018-07-10	U.S. Patent No. 10,016,429 Issued
2026-10-21	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 8,722,693

- Patent Identification: U.S. Patent No. 8,722,693, *"Salts of the Janus kinase inhibitor (R)-3-(4-(7H-PYRROLO[2,3-D]PYRIMIDIN-4-YL)-1H-PYRAZOL-1-YL)-3-CYCLOPENTYLPROPANENITRILE,"* issued May 13, 2014.
- The Invention Explained:
  - Problem Addressed: The patent background describes a continual need for new or improved forms of existing Janus kinase (JAK) inhibitors to develop more effective pharmaceutical formulations for treating cancer and other diseases '693 Patent, col. 1:19-27
  - The Patented Solution: The invention provides specific salt forms of the JAK inhibitor ruxolitinib, which possess advantageous physicochemical properties over the free base form '693 Patent, col. 3:1-13 In particular, the patent discloses the maleic acid, sulfuric acid, and phosphoric acid salts, which are described as being highly crystalline and having superior aqueous solubility and stability, facilitating their use in pharmaceutical dosage forms '693 Patent, col. 13:1-17 '693 Patent, col. 15:1-9
  - Technical Importance: Creating a stable, soluble, and manufacturable crystalline salt form is a critical step in converting an active molecule into a commercially viable drug product with predictable characteristics.
- Key Claims at a Glance:
  - The complaint alleges infringement of "one or more" claims without specifying which ones Compl. ¶37 Independent claim 1 is representative.
  - Essential elements of Independent Claim 1 (a method of treatment claim):
    - A method of treating a myeloproliferative disorder in a patient in need thereof,
    - comprising administering to said patient a therapeutically effective amount of a compound that is (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile phosphoric acid salt.

        - The complaint does not explicitly reserve the right to assert dependent claims, but the broad allegation for "one or more claims" leaves this possibility open.

U.S. Patent No. 8,822,481

- Patent Identification: U.S. Patent No. 8,822,481, *"Salts of the Janus kinase inhibitor (R)-3-(4-(7H-PYRROLO[2,3-D]PYRIMIDIN-4-YL)-1H-PYRAZOL-1-YL)-3-CYCLOPENTYLPROPANENITRILE,"* issued September 2, 2014.
- The Invention Explained:
    - Problem Addressed: As with the ’693 Patent, the background identifies the need for improved forms of JAK inhibitors suitable for pharmaceutical development ’481 Patent, col. 1:21-29
    - The Patented Solution: This patent also discloses specific salt forms of ruxolitinib. While the specification is similar to the ’693 Patent, the claims of the ’481 Patent are directed to compositions and methods involving the maleic acid salt form of the compound, which is described as having beneficial properties such as crystallinity and solubility ’481 Patent, abstract ’481 Patent, col. 15:1-25
    - Technical Importance: The creation of a distinct salt form like the maleate provides an alternative chemical entity that may have a different balance of properties (e.g., solubility, stability, hygroscopicity) compared to other salts or the free base.
- Key Claims at a Glance:
    - The complaint alleges infringement of "one or more" claims without specification Compl. ¶46 Independent claim 1 is representative.
    - Essential elements of Independent Claim 1 (a composition claim):
        - A composition comprising (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile maleic acid salt.
    - The complaint’s general allegation allows for the future assertion of dependent claims.

Multi-Patent Capsule: U.S. Patent No. 8,829,013

- Patent Identification: U.S. Patent No. 8,829,013, *"Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-D]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile,"* issued September 9, 2014.

- Technology Synopsis: The ’013 Patent addresses the same problem as its parent patents: the need for improved, formulatable versions of the ruxolitinib compound ’013 Patent, col. 1:20-28 The solution provided in this patent focuses on the sulfuric acid salt of ruxolitinib, which is characterized as crystalline and having advantageous pharmaceutical properties ’013 Patent, col. 15:51-67
- Asserted Claims: The complaint asserts "one or more" claims Compl. ¶55 Representative independent claim 1 is a composition claim for the sulfuric acid salt.
- Accused Features: The accused act is Hetero's submission of ANDA No. 221679, which allegedly seeks approval to market a product containing the claimed sulfuric acid salt of ruxolitinib Compl. ¶55

Multi-Patent Capsule: U.S. Patent No. 10,016,429

- Patent Identification: U.S. Patent No. 10,016,429, *"Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-D]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile,"* issued July 10, 2018.
- Technology Synopsis: As a continuation in the same family, the ’429 Patent also addresses the need for stable, formulatable forms of ruxolitinib ’429 Patent, col. 1:20-28 The patent claims methods of treatment using the phosphoric, sulfuric, or maleic acid salts of ruxolitinib for conditions including allograft rejection ’429 Patent, abstract ’429 Patent, cl. 1
- Asserted Claims: The complaint asserts "one or more" claims Compl. ¶64 Representative independent claim 1 is a method of treatment claim for allograft rejection using the phosphoric acid salt.
- Accused Features: The accused act is Hetero's submission of ANDA No. 221679, which allegedly seeks approval to market a generic product with a label that will encourage its use for patented methods Compl. ¶64 Compl. ¶67

III. The Accused Instrumentality

- Product Identification: The accused instrumentalities are "Hetero's Proposed Products," defined as the generic drug products that are the subject of ANDA No. 221679 Compl. ¶21
- Functionality and Market Context: The proposed products are generic versions of Incyte’s Jakafi® (ruxolitinib) tablets, offered in 5 mg, 10 mg, 15 mg, 20 mg, and 25 mg strengths Compl. ¶1 As a JAK inhibitor, the product functions to modulate the activity of Janus kinases. The complaint alleges that upon approval, the proposed products will be sold throughout the United States for indications that overlap with

those covered by the patents-in-suit and will include prescribing information that encourages administration according to the claimed methods Compl. ¶21 Compl. ¶33 No probative visual evidence provided in complaint.

IV. Analysis of Infringement Allegations

The complaint pleads infringement under 35 U.S.C. § 271(e)(2)(A), where the submission of an ANDA for a drug claimed in a patent is a statutory act of infringement. The complaint does not provide specific evidence from the ANDA filing. The following tables summarize the infringement theory as alleged.

'693 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating a myeloproliferative disorder in a patient in need thereof, comprising administering to said patient a therapeutically effective amount of a compound that is (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile phosphoric acid salt.	The submission of ANDA No. 221679 seeks FDA approval to market a generic drug product that is the claimed phosphoric acid salt, for infringing uses including the treatment of myeloproliferative disorders.	¶37; ¶33	col. 13:39-47

'481 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation

A composition comprising (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile maleic acid salt.	The submission of ANDA No. 221679 seeks FDA approval to market a generic drug product that is a composition comprising the claimed maleic acid salt.	¶46	col. 13:18-25

- Identified Points of Contention:
  - Chemical Identity Question: A primary point of contention will be whether the active pharmaceutical ingredient (API) in Hetero's proposed product is, in fact, one of the specific salt forms claimed by Incyte. The analysis will depend on the precise chemical structure, stoichiometry (e.g., 1:1 salt), and physical form (e.g., crystalline vs. amorphous) of Hetero's API as disclosed in its ANDA.
  - Scope Question: For the method claims, a dispute may arise over whether Hetero's proposed product label will inevitably lead physicians to prescribe the drug for the patented methods. This raises the question of whether there are substantial non-infringing uses for Hetero's product that would defeat claims of induced infringement.

V. Key Claim Terms for Construction

- The Term: "[specific acid] salt" (e.g., "phosphoric acid salt")
- Context and Importance: The definition of the specific salt is central to the dispute. The case will likely turn on whether Hetero's proposed product contains the free base form of ruxolitinib, a different salt form not covered by the patents-in-suit, or one of the specifically claimed phosphate, maleate, or sulfate salts. Practitioners may focus on this term because even minor variations in chemical form can be sufficient to design around composition of matter claims.
- Intrinsic Evidence for Interpretation:
  - Evidence for a Broader Interpretation: The claims themselves recite the salt by name (e.g., "phosphoric acid salt") without explicitly limiting it to a particular crystalline form or stoichiometric ratio, which may support an interpretation covering any association of the base molecule and the acid.
  - Evidence for a Narrower Interpretation: The specifications provide detailed characterization data, including X-ray powder diffraction (XRPD) patterns and melting points for specific crystalline forms of the salts (e.g., '693 Patent,

col. 16:39-55; '481 Patent, col. 15:10-25). A defendant may argue that the claims should be limited to these specifically disclosed and characterized crystalline forms.

- The Term: "crystalline"
- Context and Importance: Several patents in the family claim "crystalline" salts (e.g., '693 Patent, cl. 5; '481 Patent, cl. 5). If Hetero's ANDA product uses an amorphous (non-crystalline) form of a salt, it may not infringe these claims. The patents emphasize the advantages of the crystalline forms, suggesting this property is a key feature of the invention.
- Intrinsic Evidence for Interpretation:
  - Evidence for a Broader Interpretation: The term itself could be given its plain and ordinary meaning, covering any material with a degree of long-range atomic order, not just the exact forms disclosed.
  - Evidence for a Narrower Interpretation: The patents provide specific XRPD peaks and figures for the disclosed crystalline salts '693 Patent, col. 16:39-55 A defendant may argue that "crystalline" should be construed to mean having the specific XRPD pattern disclosed in the patent, effectively limiting the claim to a particular polymorph.

VI. Other Allegations

- Indirect Infringement: The complaint alleges induced infringement, stating that upon approval, Hetero's product labeling will instruct and encourage medical professionals and patients to administer the drug in a manner that infringes the asserted method claims Compl. ¶40 Compl. ¶49 Compl. ¶58 Compl. ¶67 It also pleads contributory infringement, alleging the product is especially adapted for infringing uses and has no substantial non-infringing uses Compl. ¶41 Compl. ¶50 Compl. ¶59 Compl. ¶68
- Willful Infringement: The complaint does not use the word "willful," but alleges that the case is "exceptional" and requests an award of attorneys' fees pursuant to 35 U.S.C. § 285 Compl. ¶44 Compl. ¶53 Compl. ¶62 Compl. ¶71 The basis for this is Hetero's knowledge of the patents, evidenced by its submission of Paragraph IV certifications to the FDA Compl. ¶34

VII. Analyst's Conclusion: Key Questions for the Case

- A core issue will be one of chemical and physical identity: Does the active pharmaceutical ingredient described in Hetero's confidential ANDA filing meet the specific limitations of the asserted claims? This will involve a technical

comparison of Hetero's API against the claimed phosphate, maleate, and sulfate salts, focusing on chemical composition, stoichiometry, and crystalline structure.

- A second key question will be one of patent validity: Although not detailed in the complaint, Hetero's Paragraph IV certification signals its intent to challenge the validity of the patents-in-suit. The case will likely involve significant disputes over whether the creation of these specific salt forms was obvious to a person of ordinary skill in the art at the time of the invention.
- Finally, for any asserted method claims, a central question will be induced infringement: Assuming Hetero's product contains a claimed salt, does its proposed label language actively encourage, recommend, or promote an infringing use, or can Hetero demonstrate substantial non-infringing uses that would negate the allegation of inducement?

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UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY

INCYTE CORP. and INCYTE HOLDINGS CORP., **Plaintiffs,** **v.** **HETERO USA, INC., HETERO LABS LIMITED UNIT-V, and HETERO LABS LIMITED,** **Defendants.**	**Civil Action No. _____** **COMPLAINT FOR PATENT INFRINGEMENT** **(Filed Electronically)**

Plaintiffs Incyte Corporation and Incyte Holdings Corporation (together, "Incyte"), by their undersigned attorneys, for their Complaint against Defendants Hetero USA, Inc. ("Hetero USA"), Hetero Labs Limited Unit-V ("Hetero Unit-V"), and Hetero Labs Limited ("Hetero Labs") (collectively, "Hetero" or "Defendants"), allege as follows:

Nature of the Action

1. This is an action for patent infringement under the patent laws of the United States, 35 U.S.C. § 100,

et seq ., in particular under 35 U.S.C. § 271, arising from Hetero's submission of Abbreviated New Drug Application ("ANDA") No. 221679 ("Hetero's ANDA") to the United States Food and Drug Administration ("FDA") seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell a generic version of Incyte's Jakafi® (ruxolitinib) drug products, 5 mg, 10mg, 15 mg, 20 mg, and 25 mg tablets, prior to the expiration of United States Patent Nos. 8,722,693 (the "'693 patent"); 8,822,481 (the "'481 patent"); 8,829,013 (the "'013 patent"); and 10,016,429 (the "'429 patent") (collectively, the

"patents-in-suit"). The patents-in-suit are owned by Incyte Corporation and/or Incyte Holdings Corporation.

The Parties

2. Plaintiff Incyte Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.
3. Plaintiff Incyte Holdings Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803
4. On information and belief, Defendant Hetero USA is a corporation organized and existing under the laws of the State of Delaware, with a principal place of business at 1035 Centennial Avenue, Piscataway, New Jersey 08854. Hetero USA is the U.S. Regulatory Agent for Hetero Unit-V, a division of Hetero Labs, including for ANDA No. 221679.
5. On information and belief, Defendant Hetero Unit-V is a corporation organized and existing under the laws of India, and maintains a principal place of business at Polepally, Jadcherla, Mahabubnagar - 509301, Andhra Pradesh, India. Hetero Unit-V is a division of Hetero Labs.
6. On information and belief, Defendant Hetero Labs is a corporation organized and existing under the laws of India, having a principal place of business at 7-2-A2, Industrial Estates, Sanath Nagar, Hyderabad - 500018, Telangana, India.

The Patents-in-Suit

7. On May 13, 2014, the United States Patent and Trademark Office ("USPTO") duly and lawfully issued the '693 patent, entitled, "Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile." A copy of the '693 patent is attached hereto as Exhibit A.
8. On September 2, 2014, the USPTO duly and lawfully issued the '481 patent, entitled, "Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile." A copy of the '481 patent is attached hereto as Exhibit B.
9. On September 9, 2014, the USPTO duly and lawfully issued the '013 patent,entitled,"Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-D]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile." A copy of the '013 patent is attached hereto as Exhibit C.
10. On July 10, 2018, the USPTO duly and lawfully issued the '429 patent, entitled, "Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-D]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile." A copy of the '429 patent is attached hereto as Exhibit D.
11. Pursuant to 35 U.S.C. § 282, each of the patents-in-suit is presumed valid.

The Jakafi® Drug Products

12. Incyte Corporation holds an approved New Drug Application ("NDA") under Section 505(a) of the Federal Food Drug and Cosmetic Act ("FFDCA"), 21 U.S.C. § 355(a) for Jakafi ®(ruxolitinib) (NDA No. 202192).
13. Pursuant to 21 U.S.C. § 355(b)(1) and attendant FDA regulations, the patents-in-suit are listed in the FDA publication entitled "Approved Drug Products with Therapeutic Equivalence Evaluations" (the "Orange Book"), with respect to Jakafi®
14. The FDA-approved prescribing information for Jakafi® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Jakafi® according to one or more of the methods claimed in the patents-in-suit.

Jurisdiction and Venue

15. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.
16. This Court has personal jurisdiction over Hetero Unit-V pursuant to Federal Rule of Civil Procedure 4(k)(2), including because: (a) Incyte's claims arise under federal law; (b) Hetero Unit-V is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Hetero Unit-V has sufficient contacts with the United States as a whole, including, without limitation, preparing and submitting ANDAs to the FDA and/or manufacturing, importing, offering to sell, and/or selling pharmaceutical products that are distributed throughout the United States, such that this Court's exercise of jurisdiction over Hetero Unit-V satisfies due process.
17. This Court has personal jurisdiction over Hetero Labs pursuant to Federal Rule of Civil Procedure 4(k)(2), including because: (a) Incyte's claims arise under federal law; (b) Hetero Labs is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Hetero Labs has sufficient contacts with the United States as a whole, including, without limitation, preparing and submitting ANDAs to the FDA and/or manufacturing, importing, offering to sell, and/or selling pharmaceutical products that are distributed throughout the United States, such that this Court's exercise of jurisdiction over Hetero Labs satisfies due process.
18. This Court has personal jurisdiction over Hetero USA because Hetero USA maintains its principal place of business and a regular and established place of business in New Jersey, conducts business in New Jersey, has systematic and continuous contacts with New Jersey, and has purposefully availed itself of the rights, benefits, and privileges of New Jersey.
19. On information and belief, Hetero purposefully has conducted, and continues to conduct, business in this Judicial District.
20. On information and belief, Hetero is in the business of, among other things, manufacturing, marketing, importing, offering for sale, and selling pharmaceutical products, including generic drug products, throughout the United States, including in this Judicial District.
21. On information and belief, Hetero submitted ANDA No. 221679 seeking FDA approval to engage in the manufacture, use, importation, distribution, offer to sell, and/or sale of the generic drug products that are the subject of Hetero's ANDA ("Hetero's Proposed Products"), throughout the United States, including in New Jersey and in this Judicial District, prior to the expiration of the patents-in-suit.
22. On information and belief, this Judicial District is a likely destination for Hetero's Proposed Products.
23. On information and belief, Hetero intends to benefit directly if its ANDA is approved by participating in the manufacture, importation, distribution, and/or sale of Hetero's Proposed Products.

24. On information and belief, Hetero USA maintains a regular and established physical place of business at 1035 Centennial Avenue, Piscataway, New Jersey 08854.
25. On information and belief, Hetero USA is registered with the State of New Jersey's Division of Revenue and Enterprise Services as a business operating in New Jersey under Business ID No. 0400362826 and is registered with the New Jersey Department of Health as a manufacturer and wholesaler under Registration No. 5004050.
26. Hetero has purposefully availed itself of the rights, benefits, and privileges of New Jersey, including by asserting counterclaims in this Court. See, e.g. AbbVie Inc., et al. v. Hetero USA Inc., et al., No. 3:26-cv-00114 (D.N.J.); Pharmacosmos A/S, et al. v. Hetero Labs Limited, et al.,No. 2:25-cv-03945 (D.N.J.); Aragon Pharmaceuticals, Inc., et al. v. Hetero Labs Limited Unit V, et al., No. 2:24-cv-06784 (D.N.J.); Esperion Therapeutics, Inc. v. Hetero USA Inc., et al., No. 2:24-cv- 06389 (D.N.J.); Axsome Malta Ltd., et al. v. Alkem Laboratories Ltd., et al., No. 2:23-cv-20354 (D.N.J.); Merck Sharp & Dohme LLC v. Hetero USA, Inc., No. 2:22-cv-06820 (D.N.J.); Celgene Corporation v. Hetero Labs Limited, et al., No. 2:20-cv-14389 (D.N.J.); Celgene Corporation v. Hetero Labs Limited, et al., No. 2:19-cv-15449 (D.N.J.); and Boehringer Ingelheim Pharmaceuticals, Inc., et al. v. Hetero USA, Inc., et al.,No. 3:17-cv-07923 (D.N.J.)
27. Hetero has further availed itself of the jurisdiction of this Judicial District by initiating litigation in this Judicial District. See, e.g. Symed Labs Limited, et al. v. Amneal Pharmaceuticals LLC, et al., No. 2:18-cv-13628 (D.N.J.) and Symed Labs Limited, et al. v. Roxane Laboratories, Inc., No. 2:15-cv-08304 (D.N.J.).
28. For at least the foregoing reasons, venue is proper in this Judicial District for Hetero USA pursuant to 28 U.S.C. §§ 1391 and/or 1400(b).
29. For at least the foregoing reasons, venue is proper in this Judicial District for Defendant Hetero Unit-V pursuant to 28 U.S.C. §§ 1391 and/or 1400(b), including, for example, because Hetero Unit-V is a corporation organized and existing under the laws of India and, as a foreign entity, may be sued in any judicial district.
30. For at least the foregoing reasons, venue is proper in this Judicial District for Defendant Hetero Labs pursuant to 28 U.S.C. §§ 1391 and/or 1400(b), including, for example, because Hetero Labs is a corporation organized and existing under the laws of India and, as a foreign entity, may be sued in any judicial district.

Acts Giving Rise To This Suit

31. Pursuant to Section 505 of the FFDCA, Hetero submitted ANDA No. 221679 seeking approval to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Hetero's Proposed Products, which are proposed generic versions of Incyte's approved Jakafi® products, before the patents-in-suit expire.
32. On information and belief, following FDA approval of Hetero's ANDA, Hetero will make, use, sell, or offer to sell Hetero's Proposed Products throughout the United States, and/or import such generic products into the United States.
33. On information and belief, following FDA approval of Hetero's ANDA, Hetero's Proposed Products will include prescribing information, similar to that for Jakafi®, that instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Hetero's Proposed Products according to one or more of the methods claimed in the patents-in-suit.
34. On information and belief, in connection with the submission of ANDA No. 221679 as described above, Hetero provided written certifications to the FDA pursuant to Section 505 of the FFDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Hetero's Paragraph IV Certifications"), alleging that the claims of the patents-in-suit are invalid and/or will not be infringed by the activities described in Hetero's ANDA.

35. Hetero subsequently sent to Incyte written notice of Hetero's Paragraph IV Certifications for the patents-in-suit, alleging that the claims of those patents are invalid and/or will not be infringed by the activities described in Hetero's ANDA. Hetero's written notice to Incyte conveyed that Hetero seeks approval to market Hetero's Proposed Products before the patents-in-suit expire.

Count I: Infringement of the '693 Patent

36. Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.
37. Hetero's submission of ANDA No. 221679, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Hetero's Proposed Products prior to the expiration of the '693 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).
38. There is a justiciable controversy between the parties hereto as to the infringement of the '693 patent.
39. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will infringe one or more claims of the '693 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States.
40. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will induce infringement of one or more claims of the '693 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States. On information and belief, upon FDA approval of Hetero's ANDA, Hetero will intentionally encourage acts of direct infringement with knowledge of the '693 patent and knowledge that its acts are encouraging infringement.
41. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will contributorily infringe one or more claims of the '693 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States. On information and belief, Hetero has had and continues to have knowledge that Hetero's Proposed Products are especially adapted for a use that infringes one or more claims of the '693 patent and that there is no substantial non-infringing use for Hetero's Proposed Products.
42. Incyte will be substantially and irreparably damaged and harmed if Hetero's infringement of the '693 patent is not enjoined.
43. Incyte does not have an adequate remedy at law.
44. This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count II: Infringement of the '481 Patent

45. Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.
46. Hetero's submission of ANDA No. 221679, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Hetero's Proposed Products prior to the expiration of the '481 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).
47. There is a justiciable controversy between the parties hereto as to the infringement of the '481 patent.
48. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will infringe one or more claims of the '481 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States.
49. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will induce infringement of one or more claims of the '481 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States. On information and belief, upon FDA approval of Hetero's ANDA, Hetero will intentionally encourage acts of direct infringement with knowledge of the '481 patent and knowledge that its acts are encouraging infringement.

50. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will contributorily infringe one or more claims of the '481 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States. On information and belief, Hetero has had and continues to have knowledge that Hetero's Proposed Products are especially adapted for a use that infringes one or more claims of the '481 patent and that there is no substantial non-infringing use for Hetero's Proposed Products.
51. Incyte will be substantially and irreparably damaged and harmed if Hetero's infringement of the '481 patent is not enjoined.
52. Incyte does not have an adequate remedy at law.
53. This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count III: Infringement of the '013 Patent

54. Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.
55. Hetero's submission of ANDA No. 221679, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Hetero's Proposed Products prior to the expiration of the '013 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).
56. There is a justiciable controversy between the parties hereto as to the infringement of the '013 patent.
57. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will infringe one or more claims of the '013 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States.
58. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will induce infringement of one or more claims of the '013 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States. On information and belief, upon FDA approval of Hetero's ANDA, Hetero will intentionally encourage acts of direct infringement with knowledge of the '013 patent and knowledge that its acts are encouraging infringement.
59. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will contributorily infringe one or more claims of the '013 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States. On information and belief, Hetero has had and continues to have knowledge that Hetero's Proposed Products are especially adapted for a use that infringes one or more claims of the '013 patent and that there is no substantial non-infringing use for Hetero's Proposed Products.
60. Incyte will be substantially and irreparably damaged and harmed if Hetero's infringement of the '013 patent is not enjoined.
61. Incyte does not have an adequate remedy at law.
62. This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count IV: Infringement of the '429 Patent

63. Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.
64. Hetero's submission of ANDA No. 221679, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Hetero's Proposed Products prior to the expiration of the '429 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).
65. There is a justiciable controversy between the parties hereto as to the infringement of the '429 patent.

66. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will infringe one or more claims of the '429 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States.
67. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will induce infringement of one or more claims of the '429 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States. On information and belief, upon FDA approval of Hetero's ANDA, Hetero will intentionally encourage acts of direct infringement with knowledge of the '429 patent and knowledge that its acts are encouraging infringement.
68. Unless enjoined by this Court, upon FDA approval of Hetero's ANDA, Hetero will contributorily infringe one or more claims of the '429 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Hetero's Proposed Products in the United States. On information and belief, Hetero has had and continues to have knowledge that Hetero's Proposed Products are especially adapted for a use that infringes one or more claims of the '429 patent and that there is no substantial non-infringing use for Hetero's Proposed Products.
69. Incyte will be substantially and irreparably damaged and harmed if Hetero's infringement of the '429 patent is not enjoined.
70. Incyte does not have an adequate remedy at law.
71. This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

PRAYER FOR RELIEF

WHEREFORE, Incyte respectfully requests the following relief:

(A) A Judgment that Hetero has infringed the patents-in-suit by submitting ANDA No. 221679 with the accompanying Paragraph IV Certifications and notice to Incyte of same;

(B) A Judgment that Hetero has infringed, and that Hetero's making, using, selling, offering to sell, and/or importing Hetero's Proposed Products will infringe, one or more claims of the patents-in-suit;

(C) An Order that, pursuant to 35 U.S.C. § 271(e)(4)(A), the effective date of FDA approval of ANDA No. 221679 be a date that is not earlier than the later of the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(D) Preliminary and permanent injunctions enjoining Hetero and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from making, using, offering to sell, selling, and/or importing Hetero's Proposed Products until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(E) A permanent injunction, pursuant to 35 U.S.C. § 271(e)(4)(B), restraining and enjoining Hetero, its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from practicing any of the subject matter claimed in the patents-in-suit, or from actively inducing or contributing to the infringement of any claim of the patents-in-suit, until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(F) A Judgment that the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of Hetero's Proposed Products will directly infringe, induce infringement of, and/or contribute to infringement of the patents-in-suit;

(G) To the extent that Hetero, its officers, agents, attorneys, and/or employees, or those acting in privity and/or concert with them, has committed any acts with respect to the subject matter claimed in the

patents-in-suit, other than those acts expressly exempted by 35 U.S.C. § 271(e)(1), a Judgment awarding Incyte damages for such acts;

(H) If Hetero, its officers, agents, attorneys, and/or employees, or those acting in privity and/or concert with them, engages in the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of Hetero's Proposed Products prior to the expiration of the patents-in-suit, a Judgment awarding damages and any other monetary relief permitted by law to Incyte resulting from such infringement, together with interest;

(I) A Judgment declaring that the patents-in-suit remain valid and enforceable;

(J) A Judgment that this is an exceptional case pursuant to 35 U.S.C. § 285 and awarding Incyte its attorneys' fees incurred in this action;

(K) A Judgment awarding Incyte its costs and expenses incurred in this action; and

(L) Such further and other relief as this Court may deem just and proper.

Dated: October 21, 2026
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